

SENATE BILL 1948

By Bowling

AN ACT to amend Tennessee Code Annotated, Title 38;
Title 63 and Title 68, relative to death
investigations.

WHEREAS, the United States Centers for Disease Control and Prevention operates the Sudden Unexpected Infant Death and Sudden Death in the Young Case Registry, a national surveillance program coordinated with the National Institutes of Health to establish a valuable repository of information for researchers studying the characteristics of sudden deaths in young individuals; and

WHEREAS, medical examiners in this State are currently not required to report to the registry, resulting in inconsistent data collection; and

WHEREAS, uniform reporting and the inclusion of relevant medical information, including recent immunizations and emergency countermeasures, are essential to strengthen public health research, identify risk factors, and improve prevention strategies; now, therefore, BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 38, Chapter 7, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Sudden arrhythmic death syndrome (SADS)" means the sudden and unexpected death due to cardiac arrhythmia, as determined by performance of an autopsy or a clinical investigation, of a young, apparently healthy individual with no previously diagnosed structural heart disease;

(2) "Sudden death in the young (SDY)" means the sudden and unexpected death of an individual younger than twenty (20) years of age due to natural causes, including, but not limited to, sudden cardiac death or sudden

unexpected death in epilepsy, which death remains unexplained after initial investigation;

(3) "Sudden infant death syndrome (SIDS)" means the sudden death of an infant younger than one (1) year of age, which remains unexplained after a thorough case investigation, including performance of an autopsy, scene investigation, and a review of clinical history;

(4) "Sudden unexpected infant death (SUID)" means the sudden and unexpected death of an infant younger than one (1) year of age, whether explained or unexplained, including, but not limited to, death caused by SIDS, accidental suffocation, and other potential causes; and

(5) "Sudden Unexpected Infant Death (SUID) and Sudden Death in the Young (SDY) Case Registry" or "SUID and SDY Case Registry" means the national surveillance system coordinated by the federal centers for disease control and prevention and the national institutes of health that collects standardized data on sudden and unexpected deaths in individuals younger than twenty (20) years of age.

(b) In the case of an infant or child who dies suddenly and unexpectedly, including cases of SIDS, SUID, or SDY, the county medical examiner shall ensure that the autopsy includes microscopic and toxicology studies and a review of the child's immunization and medical records, as available through this state's vaccine registry, from the child's pediatrician or primary care healthcare provider, or from other sources. The county medical examiner shall document in the autopsy report any immunizations or emergency countermeasures administered to the child within ninety (90) days before the date of the child's death. The county medical examiner shall report the case to the SUID and SDY Case Registry within thirty (30) days after the date the county medical

examiner completes the autopsy report, and in accordance with protocols established by the department of health and the federal centers for disease control and prevention.

(c) In the case of a sudden death suspected to be caused by SADS in an individual of any age, the county medical examiner shall ensure that the autopsy includes microscopic and toxicology studies and a review of the individual's immunization and medical records, as available through state health databases or other sources. The county medical examiner shall document in the autopsy report any immunizations or emergency countermeasures administered to the individual within ninety (90) days before the date of death. If the individual was younger than twenty (20) years of age at the time of death, then the county medical examiner shall report the case to the SUID and SDY Case Registry within thirty (30) days after the date the county medical examiner completes the autopsy report, and in accordance with protocols established by the department of health and the federal centers for disease control and prevention.

(d)

(1) The commissioner of health shall enforce this section.

(2) A person who violates subsection (b) or (c), or rules promulgated pursuant to subsection (b) or (c), is subject to a civil penalty of up to:

(A) One thousand dollars (\$1,000) for the first unreported case in violation of this section; or

(B) Five thousand dollars (\$5,000) for a second or subsequent unreported case in violation of this section.

(3) The commissioner shall notify the board of medical examiners or board of osteopathic examination, as appropriate, of a medical examiner who the commissioner determines has committed two (2) or more violations of this

section. Multiple violations of this section may subject a medical examiner to discipline by the medical examiner's licensing board, which may include the suspension or revocation of the medical examiner's license.

(e) A healthcare provider's disclosure of relevant information in compliance with the reporting and documentation requirements of this section, including, but not limited to, protected health information, is deemed a permissible disclosure under the law of this state.

SECTION 2. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.